

## 26STCP02927 26STCP02927

County: los-angeles

Division: Civil Law and Motion

Department: 311

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCP02927

NORAYR

AVAGYAN vs STATE NATIONAL INSURANCE COMPANY, INC.

September

3, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER'S PETITION FOR ORDER COMPELLING ARBITRATION AND APPOINTMENT OF  
ARBITRATOR (C.C.P. §§ 1281.2, 1281.6; INS. CODE § 11580.2).

RULING:

The Court denies the Petition.

Plaintiff to give notice.

I.

#### BACKGROUND

On August 4, 2026, NORAYR AVAGYAN (Petitioner) filed the Petition to Compel Arbitration against STATE NATIONAL INSURANCE COMPANY, INC. (Respondent), alleging that arbitration is required under Code of Civil Procedure section 1292 and Insurance Code section 11580.2, subdivision (f), as to the underlying incident involving a car collision along with a gun shooting. "The parties therefore dispute Petitioner's legal entitlement to recover from the unidentified motorist and the amount of damages." (Petition, ¶13.)

Respondent opposes, contending that the insurance agreement expressly does not allow arbitration for "coverage" disputes as here.

II.

#### LEGAL STANDARD

In order to determine arbitration-clause scope, courts should give effect to the parties' intentions, in light of the usual and ordinary meaning of the language, and the circumstances of the agreement. (Titolo v. Cano (2007) 157 Cal.App.4th 310, 317.)

III.

#### ANALYSIS

Petitioner contends that arbitration should be compelled given the particular contractual provision covering the dispute that is unrelated to Petitioner being an insured having coverage, where the evidence shows the subject vehicles did collide such that liability is shown.

Respondent disagrees,

arguing that the policy expressly excludes coverage disputes, and Petitioner's evidence did not establish physical vehicle contact as required in order to qualify for coverage as to an uninsured motor vehicle.

According to a treatise supported by case citations, uninsured motorist arbitration does not apply until after "coverage" disputes are resolved:

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[6:2392.6a] Whether a claimant is insured under an uninsured motorist provision "is not a question of the underinsured tortfeasor's liability or damages owed to the insured, and is therefore not subject to arbitration under Insurance Code section 11580." [Bouton v. USAA Cas. Ins. Co. (2008) 43 C4th 1190, 1193, 78 CR3d 519, 521—court must determine whether claimant, who was insured's brother, was "resident" of her household and thus within coverage provision]

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[6:2392.7] A dispute as to whether the insured waived his right to UMC benefits by waiting for more than a year after the accident to initiate UMC arbitration proceedings was for the trial court, not the arbitrator, to decide. Rationale: Waiver "is not one of the arbitrable issues having to do with the liability of the uninsured motorist to the insured but relates directly to the liability or obligation of the insurer to the insured under the policy and pertinent statute." [Freeman v. State Farm Mut. Auto. Ins. Co. (1975) 14 C3d 473, 484, 121 CR 477, 483-484 (emphasis in original; internal quotes omitted)]

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[6:2392.8] A dispute as to whether the other driver's insurer became insolvent within one year after the accident is for the court, not the arbitrator, to decide. Because such insolvency is a prerequisite to UMC (see ¶ 6:2168, 6:2180), the dispute must be "logically and legally" resolved prior to arbitration of the tortfeasor's liability and the insured's damages. [State Farm Mut. Auto. Ins. Co. v. Sup.Ct. (Soltero) (1994) 23 CA4th 1297, 1304, 28 CR2d 711, 715]

....

(a)

[6:2392.10] Arbitration stayed pending coverage determination: UMC arbitration proceedings are generally stayed until the coverage issues are

resolved—typically, by suits for declaratory relief. [Furlough v. Transamerica Ins. Co. (1988) 203 CA3d 40, 45, 249 CR 703, 706; California State Auto. Ass'n Inter-Ins. Bureau v. Sup.Ct. (Sousa) (1986) 184 CA3d 1428, 1433, 229 CR 409, 412]

(California Practice

Guide: Insurance Litigation, §§ 6:2392.6a-6:2392.10.) (Underscoring added.)

Here, the policy language

clearly provides that coverage issues may not be arbitrated, as follows:

1.

If “we” and an “insured” do not agree:

a.

Whether that “insured” is legally entitled to recover damages; or

b.

As to the amount of damages which are recoverable by that “insured”;

from

the owner or operator of an “Uninsured or underinsured motor vehicle”, then the matter may be arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Both parties must agree to arbitration.

If so agreed, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within thirty (30) days, either may request that selection be made by a judge of a court having jurisdiction.

(Petition, Exhibit 1, p.

16, “ARBITRATION”). (Underscoring added.)

Petitioner’s reliance

upon the Orpustan opinion as being based upon broadly worded language (Petition, pp. 6-7), does not address narrowly worded agreement provisions and the several other cases cited above, first requiring something like a declaratory relief action in court regarding the coverage disputes.

Specifically, that Court

held in favor of the Plaintiff contending, “all disputes arising under the uninsured motorist coverage should be subject to decision by the

arbitrator, including the issue of physical contact in relation to the insurer's liability under the policy." (Orpustan v. State Farm Mut. Auto. Ins. Co. (1972) 7 Cal.3d 988, 991.) (Underscoring added.)

But, unlike the policy language in that case, the instant policy clearly excludes "disputes concerning coverage" from arbitration. In contrast, the Orpustan case addressed a provision having no express exclusion for "coverage" as follows:

"  
'If any person making claim hereunder and the company do not agree that such person is legally entitled to recover damages from the owner or operator of an uninsured automobile because of bodily injury to the insured, or do not agree as to the amount payable hereunder, then each party shall, upon written demand of either, select a competent and disinterested arbitrator. The two arbitrators so named shall select a third arbitrator. . . . The arbitrators shall then hear and determine the question or questions so in dispute, and the decision in writing of any two arbitrators shall be binding upon the insured and the company. . . .'

(Ibid.)

Further, the issue of that opinion addressed physical contact as being a subset of coverage, and not an issue existing apart from coverage. Similarly, here, whether the vehicles came into physical contact is a matter within the topic of coverage. And the language here excludes "coverage."

Therefore, the Court determines that Petition is premature while the coverage dispute remains undetermined.

#### IV. CONCLUSION

The Court denies the Petition, without prejudice to properly address the coverage dispute.